

---

# NO RECORD HAS BEEN DENIED

---

TO Benjamin Gutman, Deputy Attorney General, Oregon Department of Justice

FROM Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467

DATE September 24, 2026

RE DOJ File No. 121010-GA0187-26; request for reconsideration of the order of the same date

TESTIMONY [v1.11](#)

---

Mr. Gutman:

Thank you for the September 24 order.<sup>1</sup> I am asking you to reconsider it on two grounds, and to reach a third that the order does not address.

**No record has been denied.** ORS 192.411(1) opens on “any person denied the right to inspect or to receive a copy.” ORS 192.427 opens on “any case in which a person is denied the right to inspect or to receive a copy.” The Office of the Governor has denied me nothing. On September 22 it estimated the cost of the records at \$572.50 and denied my fee waiver.<sup>2</sup> I accepted the estimate two minutes later and asked for payment instructions.<sup>3</sup> It sent them on September 24.<sup>4</sup> My petition states this on its face: no elected official has claimed a right to withhold any record, and the office has offered the records at a price.<sup>5</sup> Where there has been no denial of inspection, ORS 192.427 has nothing to operate on.

**The quoted passage is conditional in the statute.** The order quotes ORS 192.427 as “it shall not be considered by the Attorney General \* \* \*.”<sup>1</sup> The words the ellipsis replaces are “or district attorney after a claim of right to withhold disclosure by an elected official.” As enacted, that limb applies after a claim of right to withhold disclosure is made by an elected official. No such claim has been made here, by the Governor or by anyone acting for her office.

**The fee waiver ground is not reached.** My petition was filed under ORS 192.324(6) as well as ORS 192.411.<sup>5</sup> ORS 192.324(6) provides that a requester who believes there has been an unreasonable denial of a fee waiver may petition the Attorney General in the same manner as a requester who petitions when inspection is denied, and that the Attorney General has the same authority in instances when a fee waiver is denied as when inspection is denied. The order describes my petition as asking the Attorney General to order the office “to respond to a public records request.”<sup>1</sup> It does not mention the fee waiver, the five-factor analysis of September 22, or ORS 192.324(6).

I am asking for three things. Reconsider the dismissal in light of the fact that no record has been denied and no elected official has claimed a right to withhold one. State whether the ground under ORS 192.324(6) was considered, and if it was not, consider it. And where the office’s position is that the custody of the Office of the Governor is the custody of the Governor herself for purposes of ORS 192.427, state that, so it is on the record as the reason.

Respectfully,

Robert Samuel White

---

## Sources

1. [The petition is dismissed for lack of jurisdiction, September 24, 2026](#). DOJ File No. 121010-GA0187-26.
2. [The fee waiver is denied: \\$572.50, September 22, 2026](#).

3. I will pay it. Send the instructions., September 22, 2026.
4. The payment instructions arrive, September 24, 2026.
5. Petition for a Public Records Order, September 24, 2026.